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CASE #	CASE NAME	HEARING NAME
CVPS2303018	ZAMORANO VS ENERGY SERVICE PARTNERS INC.	HEARING ON MOTION FOR ORDER TO SEAL DOCUMENT(S)

Tentative Ruling: Denied.

Responding party to provide notice pursuant to CCP 1019.5.

Plaintiffs, Oscar and Patricia Zamorano, allege that Defendant, Jorgen Harjo, is a salesperson/employee of Defendant, Energy Service Partners, Inc. dba ESP Contracting (ESP), which is a partner to Defendant, Goodleap, LLC (Goodleap). Plaintiffs allege Harjo represented to them that he was selling solar, which was free including installation and supplies, and that solar had been sold to his neighbors in Cathedral City, among other representations. Plaintiff, Oscar Zamorano (Oscar), told Harjo that he was not interested, but allowed Harjo to continue his sales pitch. Plaintiffs allege that at no time did Harjo have any paperwork nor did he mention the words “loan” or “financing”. Harjo asked Oscar to sign a tablet so measurements of the roof could be taken. Oscar signed the tablet and gave Harjo Plaintiffs’ email address, but told Harjo they wanted everything in the mail. Harjo agreed.

Plaintiffs allege the representations made were false. The true facts were that Defendants were required by law to provide a disclosure/brochure before obtaining any signature; the monthly service fee for electricity would not go up if a payment of \$10,000 were paid within 18 months and/or Plaintiffs qualified for a tax break; Defendants were selling a solar system and charging for supplies and materials; Defendants used Oscar’s signature on a document that gave them the express right to add a signature to legal documents in Plaintiffs’ names; the signature would be used for other purposes; the email would be used by Defendants; and nothing would be timely provided in the mail.

Plaintiffs filed their operative Third Amended Complaint (TAC) on 10/29/24 alleging six causes of action: 1) deceit based on negligent misrepresentation; 2) elder abuse – negligence per se; 3) elder abuse; 4) fraud and deceit – intentional misrepresentation of fact; 5) fraud and concealment; and, 6) declaratory relief.

Plaintiffs, Oscar and Patricia Zamorano, bring this motion for a court order to seal court records regarding settlement to support an application for enforcement pursuant to CCP § 664.6. (Cal. Rules of Court [CRC] Rule 2.550, *et. seq.*) The matter settled on the day of trial, March 6, 2026. Plaintiffs assert numerous facts to justify sealing the records (e.g., agreement was for confidential terms for payment.) They assert that the settlement must be put on the record but, must also be sealed so, the judgment can be entered; and, that obtaining the court order is necessary to an overriding interest that overcomes the right of the public to access the records.

Defendant, Energy Service Partners, Inc. dba ESP Contracting (ESP), opposes the motion arguing that Plaintiffs must authenticate the agreement sought to be sealed; that CRC, Rule 2.550(d)(4) requires findings that the proposed sealing is narrowly tailored; that the only matter subject to confidentiality is the *amount* of the settlement so, the

request to seal the entire settlement agreement is overly broad; that judgment should not be entered as this is not a properly noticed CCP § 664.6 motion; that Plaintiffs' attorneys' fees request of \$17,500 is unreasonable.

Motion to Seal

The general rule is that unless confidentiality is required by law, court records are presumed to be open to the public. Pleadings, motions, discovery documents, and other papers may not be filed under seal merely by stipulation of the parties. A prior court order must be obtained. (CRC, Rule 2.551(a); *H.B. Fuller Co. v. Doe* (2007) 151 Cal.App.4th 879, 888.) The party who requests the document be sealed must *lodge* it with the court, and "pending determination of the motion or application, the lodged record will be conditionally under seal." (CRC, Rule 2.551(b)(4).) If the Court denies the motion to seal, the clerk must return the lodged record to the submitting party and must not place it in the case file" (CRC, Rule 2.551(b)(6).) A declaration containing facts sufficient to justify the sealing is required. (CRC, Rule 2.551(b)(1).)

Here, Plaintiffs request a court order sealing the *entire* Settlement Agreement and Release (SAR) among other documents (e.g., Plaintiffs' counsel's redactions of amounts in his declaration) on the grounds of confidentiality, which they claim must be filed under seal so the Court can enter judgment pursuant to CCP § 664.6 for enforcement purposes. To the extent that Plaintiffs are seeking to have the Court enter judgment pursuant to CCP § 664.6, this request must be made by a properly noticed motion under that section. This motion is limited to whether sealing the SAR documents is proper under the circumstances asserted by Plaintiffs. Notably, ESP objects to the SAR conditionally submitted under seal on the ground that it has not been authenticated, as required. (Evid. Code §§ 403, 702, 1400, 1401; *People v. Goldsmith* (2014) 59 Cal.4th 258, 266-267.) ESP's objection is well-taken.

Plaintiffs' assert that various facts justify sealing the SAR, as follows: 1) an oral agreement was put on the record on the first day of trial (3/6/26); 2) terms for payment from Defendants, ESP and its partner/joint venturer, GoodLeap to Plaintiffs are confidential; 3) condition of settlement payment was reserved for enforcement under CCP § 664.6; 4) the settlement amount agreed to be paid by ESP and Goodleap was [redacted]; 5) GoodLeap has paid [redacted]; 6) ESP confirmed it was not able to comply by transmitting settlement funds; 7) Plaintiffs response was that ESP was not in compliance and they demanded compliance; 8) ESP made a payment for [redacted] – not in compliance and continued not to comply; and 15) payment of the amount of [redacted] has not been made by ESP. (Motion, p. 2:9-3:26.) The remaining "facts" concern the general reasons for making this motion. (*Ibid.*) However, they are not "facts" supporting any basis to seal SAR.

CRC, Rule 2.550(d) provides that express factual findings are required to seal the records. To grant an order to seal court records, the court must expressly find that: (1) an overriding interest exists that overcomes the right of public access to the records; (2) the overriding interest supports sealing the records; (3) a substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) the proposed sealing is narrowly tailored; and (5) no less restrictive means exist to achieve the overriding interest. (CRC 2.550(d).) The party seeking to seal documents has the burden

to present sufficient facts to justify sealing the court records. (*H.B. Fuller Co. v. Doe* (2007) 151 Cal.App.4th 879.)

Here, Plaintiffs' counsel declares that sealing is necessary to an overriding interest that overcomes the right to public access to the records. That overriding interest "is the parties have entered into a settlement with the amount of settlement terms agreed to be confidential, and condition of payment to be conditional on the record." (Dec.McClellan ¶ 2.c.) Plaintiffs assert this overriding interest promotes settlements by keeping them confidential but, enforceable under CCP § 664.6. (*Ibid.*) A contractual obligation not to disclose could constitute an overriding interest. (*Universal City Studios, Inc. v. Superior Court* (2003) 110 Cal.App.4th 1273, 1283.) However, there must still be prejudice. (*Id.*)

Plaintiffs argue that if the SAR is not sealed, they will be prejudiced by an inability to enforce the terms since the Court will not have sufficient information to enter judgment or to enforce it. (*Id.* ¶¶ 4-5.) ESP does not oppose the Court keeping the settlement amounts confidential. However, the Court must be able to enforce the material terms, which it cannot do without including the amounts in a judgment.

Plaintiffs also conclude that the proposed sealing is narrowly tailored and there are no less restrictive means to protect the overriding interest. (*Id.* ¶ 6.) These assertions and arguments are conclusory. And, they do not support sealing the *entire* SAR and related documents.

Moreover, ESP adds that what Plaintiffs submitted does not allow for the Court to enter into any particular monetary judgment because it acknowledges some payment was made but, does not credit that amount and set forth the remaining balance due. "While the court may interpret the terms of the parties' settlement agreement, 'nothing in section 664.6 authorizes a judge to create the material terms of a settlement, as opposed to deciding what terms the parties themselves have previously agreed upon.'" (*Leeman v. Adams Extract & Spice, LLC* (2015) 236 Cal.App.4th 1367, 1374.) Thus, a court can only enforce terms that that were actually agreed to by the parties. (*Leeman, supra.* at p. 1374; *Greyhound Lines Inc. v. Sup. Ct.* (1979) 98 Cal.App.3d 604, 608 [court properly denied motion to enforce settlement agreement because there was substantial evidence to support the trial court's determination that Olsen had not agreed to the terms of the proposed settlement].)

Based on the foregoing, Plaintiffs have not provided a properly authenticated copy of the SAR, and have not established all of the requirements to seal the documents.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2500151	MEZA VS LEE	MOTION FOR EXTENSION OF TIME AND MOTION FOR LEAVE TO FILE SUPPLEMENTAL COMPLAINT

Tentative Ruling: No tentative. Hearing will be conducted on Wednesday September 2, 2026 at 8:30 a.m. in Department PS2.